



Vertex – Crinetics

MN-05036

Phase 1 Determination

Acquisition may be put into effect

13 August 2026

1. Determination and statement of reasons

Notified acquisition	Vertex Pharmaceuticals Incorporated (Vertex) proposes to acquire 100% of the issued shares in Crinetics Pharmaceuticals, Inc. (Crinetics) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Vertex, is a US-based biotechnology company listed on the Nasdaq Global Select Market under the symbol “VRTX”, that develops, manufactures and markets a range of pharmaceutical products for serious diseases. It currently has 7 approved products for the treatment of cystic fibrosis, sickle cell disease, transfusion dependent beta thalassemia, and acute pain (including 5 that are approved by the Therapeutic Goods Administration (TGA) and supplied in Australia). It also has certain products currently in development stages for other serious diseases. The target, Crinetics, is a US-based pharmaceutical company listed on the Nasdaq Global Select Market under the ticker symbol “CRNX”, that has a focus on discovering, developing, and commercialising treatments for endocrine diseases. Crinetics has one product on market in the US, Palsonify (paltusotine), a prescription oral medication used to treat acromegaly, a rare hormonal disorder. Palsonify is not currently approved or under review for approval by the TGA for supply in Australia. Crinetics also has a range of products currently in development stages in the endocrinology, endocrine-driven oncology and metabolic diseases spaces.
Overlap between the Parties	Vertex and Crinetics (together, the Parties) both engage in the development and supply of pharmaceutical products. There is no overlap in existing products supplied by the Parties in Australia. The ACCC has considered potential overlap in therapies in the early stages of the research and development pipeline.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC’s approach to considering notified acquisitions, see the ACCC’s merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and engagement with third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC

	makes the following findings. • There is no horizontal overlap between the existing products supplied by the Parties in Australia. • There is no horizontal overlap between the therapies in the early stages of development by the Parties. • The merged entity will continue to face competition from alternative developers and suppliers of pharmaceutical products.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**